

STATE OF NEW YORK

2011--A

Cal. No. 687

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. PARKER, OBERACKER, WEBB, ZELLNER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged and said bill committed to the Committee on Rules -- reported favorably from said committee, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to direct the department of state and the public service commission to jointly study and report upon the provision to consumer credit reporting agencies by public utility companies, cable television companies and cellular telephone service suppliers of information on late payments of or default on any fees or charges incurred by consumers; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The department of state and the public service commission
2 shall jointly examine, evaluate and make recommendations concerning the
3 prevalence of reporting, disclosure and otherwise making available to
4 any consumer credit reporting agency, as defined in subdivision (k) of
5 section 380-a of the general business law, by any public utility company
6 as defined in subdivision 23 of section 2 of the public service law, any
7 municipality engaged in providing any public utility, any cable tele-
8 vision company as defined in subdivision 1 of section 212 of the public
9 service law, any wireless communications service supplier as defined in
10 subdivision 12 of section 301 of the county law, the Long Island power
11 authority or the power authority of the state of New York, any informa-
12 tion relating to the late payment of or default on the payment of any

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 charges or fees by consumers for the provision of any public utility or
2 other services or goods. The department and commission shall study, with
3 particular care, the practice of reporting consumer payment information
4 by the above entities to consumer credit reporting agencies and make
5 recommendations on the regulatory and statutory provisions necessary to
6 protect consumers in this area.

7 § 2. The department of state and the public service commission shall
8 hold joint public hearings throughout the state for the purpose of
9 conducting their duties pursuant to section one of this act.

10 § 3. On or before December 31, 2027, the department of state and the
11 public service commission shall submit a joint report of their findings,
12 conclusions and recommendations to the governor and the legislature, and
13 shall submit with such report such regulatory and legislative proposals
14 as they deem necessary to implement their recommendations.

15 § 4. This act shall take effect immediately and shall expire and be
16 deemed repealed January 1, 2028.